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General Knowledge

Indian Polity

STUDY NOTES

Salient Features of Indian Constitution

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SALIENT FEATURES OF INDIAN CONSTITUTION

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Lengthiest Written Constitution:

- The constitution can be classified into a written constitution such as that of America or an unwritten constitution such as that of the UK.
- The Constitution of India is the **lengthiest of all the written Constitutions of the world.**
- Originally (1949), the Constitution contained a **Preamble, 395 Articles (divided into 22 Parts) and 8 Schedules.**
- It comprises **448 articles** in **25 parts** and **12 schedules** (as of October 2024).
- The factors contributing to its vastness include:
  - geographical elements such as the country's vastness and diversity,
  - historical influences stemming from the **Government of India Act of 1935**,
  - the existence of a single constitution applicable to both the centre and the states,
  - and the significant impact of legal experts.

Drawn From Various Sources:

- While the features of the Indian Constitution were influenced by various sources, the framers ensured that they were **tailored to fit Indian circumstances.**
- For instance, although the cabinet system of governance was adopted from the UK, it does not hold the same level of supremacy as it does in the UK context.
- This adaptability reflects the Indian Constitution's unique approach to governance, incorporating elements suited to the nation's diverse needs.

Source	Features Borrowed
British Constitution	Parliamentary Government, Rule of Law, Bicameralism, Cabinet System, Legislative Procedure, Single Citizenship, Parliamentary Privileges, Prerogative Writs
US Constitution	Fundamental Rights, Independence of the Judiciary, Judicial Review, Impeachment of the President, Removal of Judges of Supreme and High Courts, Vice-President's Post

Irish Constitution	Directive Principles of State Policy, Election Method of the President, Nomination of Rajya Sabha Members
Soviet Constitution (USSR, now Russia)	Ideal of Justice (Social, Economic, and Political) in the Preamble, Fundamental Duties
Canadian Constitution	Strong Centre Federation, Residuary Powers Vesting in Centre, Appointment of State Governors, Advisory Jurisdiction of Supreme Court
Australian Constitution	Concurrent List, Joint Sitting of Parliament, Freedom of Trade, Commerce, and Inter-course
Weimar Constitution of Germany	Emergency Provisions for Suspension of Fundamental Rights
French Constitution	Republic Ideals, Liberty, Equality, and Fraternity articulated in the Preamble
Japanese Constitution	Procedure Established by Law
Government of India Act, 1935	Judiciary, Public Service Commissions, Office of Governor, Federal Scheme, Administrative Details, Emergency Provisions
South African Constitution	Procedure for Amendment of Constitution, Election of Members of Rajya Sabha

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A Blend of Rigidity and Flexibility:

- The Constitution of India embodies a unique blend of rigidity and flexibility.
- **Article 368** outlines two distinct categories of amendments:
  - Certain provisions require a **special majority (two-thirds majority of the members present and voting in each House)** of Parliament for amendment, which means a two-thirds majority of the members present and voting in each House, along with a majority of the total membership of both Houses.

- Other provisions necessitate a special majority along with ratification by at least half of the total states.
- Additionally, some constitutional provisions can be modified by a **simple majority (a simple majority means more than half of those present and voting)** of Parliament, following the ordinary legislative process.

Federal System with Unitary Bias:

- A federal state is a state where a country is divided into smaller regions and the government is functioning at two levels.
- Scholars describe India as a '**Quasi-Federation**' (K.C. Wheare) as a federation with a unitary bias, even as a Unitarian federation.'
  - It contains all the usual features of a federation, viz., two Governments, division of powers, written Constitution, the supremacy of the Constitution, the rigidity of the Constitution, an independent judiciary, and bicameralism.
  - However, the Indian Constitution also contains a large number of unitary or non-federal features, viz., a strong centre, single constitution, single citizenship, the flexibility of constitution, integrated judiciary, the appointment of state governor by the centre, all-India services, emergency provisions and so on.
- **Article 1**, on the other hand, describes India as a 'Union of States' which implies two things:
- Indian Federation is not the result of an agreement by the states.
- No state has the right to secede from the federation.

⭐**NOTE:** The term **'Federation' has not** been used in the constitution.

Parliamentary Form of Government:

- A parliamentary system is also known as the "**Westminster**" model of government, **responsible** government, and **cabinet** government.
- The Constitution of India has chosen the **British Parliamentary System** of Government over the American Presidential System.
- This parliamentary framework is established not only at the national level but also in the states.

- Although the Indian parliamentary system is primarily modelled on the British example, there are significant differences between the two.
  - For instance, unlike the British Parliament, which holds sovereign authority, the Indian Parliament is not considered sovereign.
  - Additionally, while the British State is led by a hereditary monarch, the Indian State has an elected head, reflecting its republican nature.
- Key features of the parliamentary government in India include:
  - The existence of both nominal and real executives
  - Rule by the majority party
  - Collective accountability of the executive to the legislature
  - Ministerial membership in the legislature
  - Leadership of the Prime Minister or Chief Minister
  - The ability to dissolve the lower House (either Lok Sabha or State Assembly)

Fundamental Rights:

Part III of the Indian Constitution guarantees six fundamental rights to every citizen.

Fundamental Right	Article	Description
Right to Equality	14-18	Guarantees equality before the law, prohibits discrimination on grounds of religion, race, caste, sex, or place of birth, and abolishes untouchability.
Right to Freedom	19-22	Ensures freedom of speech and expression, assembly, association, movement, residence, and profession. It also provides protection against arbitrary arrest and detention.
Right against Exploitation	23-24	Prohibits human trafficking, forced labor, and child labour.
Right to Freedom of Religion	25-28	Guarantees the freedom of conscience and the right to freely profess, practice, and propagate religion.

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Cultural and Educational Rights	29-30	Protects the rights of minorities to preserve their culture, language, and script, and establishes educational institutions.
Right to Constitutional Remedies	32	Allows individuals to approach the Supreme Court for enforcement of Fundamental Rights. **Writs** are primarily derived from the legal system of England and are enshrined under Article 32 of the Constitution of India, which allows individuals to seek enforcement of their Fundamental Rights.

Writ Type	**Description**	**Purpose**
Habeas Corpus	Means "you may have the body." It is used to produce a person who is detained or imprisoned before a court.	To ensure that no individual is unlawfully detained or imprisoned.
Mandamus	Meaning "we command," it is issued to direct a subordinate court or an official to perform a public or statutory duty.	To compel a public authority to act in accordance with the law.
Prohibition	Issued by a higher court to prevent a lower court from exceeding its jurisdiction or acting contrary to the law.	To ensure that lower courts do not act outside their authority.
Quo Warranto	Meaning "by what authority," this writ is used to question the authority	To prevent illegal

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			of a person holding a public office.	occupancy of a public office.
		Certiorari	Used to quash the order or decision of a lower court or authority when it acts without jurisdiction or in violation of the principles of natural justice.	To correct the jurisdictional errors of lower courts.

Fundamental Duties:

- **Part IV-A** of the Constitution, which contains only **Article 51-A**, outlines the **eleven** Fundamental Duties.
- The original Constitution did not include the Fundamental Duties of citizens.
- These duties were introduced during the internal emergency period (1975–77) through the **42nd Constitutional Amendment Act of 1976**, based on the recommendations of the Swaran Singh Committee.
- In 2002, the **86th Constitutional Amendment Act** added an additional fundamental duty.
- These duties are **non-justiciable**, meaning they cannot be enforced by the courts.

Integrated and Independent Judiciary:

- The Indian Constitution establishes a judicial system that is both integrated and independent.
- At the apex of this integrated system is the **Supreme Court**, which oversees the judicial

structure of the country.

- Beneath the Supreme Court, high courts operate at the state level, and under these **high courts** exists a hierarchy of **subordinate courts**, including district courts and other lower courts.
- This unified court system is responsible for enforcing both central and state laws.
- The Supreme Court serves multiple roles:
  - it functions as a federal court,
  - acts as the highest appellate court,
  - guarantees the fundamental rights of citizens,
  - and safeguards the Constitution.
- To ensure the independence of the judiciary, the Constitution includes various provisions, such as the security of tenure for judges and fixed service conditions, among others.

Directive Principles of State Policy:

- Dr. B.R. Ambedkar regarded the Directive Principles of State Policy as a "**novel feature**" of the Indian Constitution.
- These principles are outlined in **Part IV** of the Constitution and can be categorized into three main groups:
  - Socialistic
  - Gandhian
  - Liberal-Intellectual
- In contrast to Fundamental Rights, the Directive Principles are **non-justiciable**, meaning that courts cannot enforce them in case of violations.
- The Constitution explicitly states that these principles are essential for governance and that it is the responsibility of the state to implement them in law-making.

Co-operative Societies:

- **97th CAA, 2011**: Constitutional status and protection to co-operative societies.
  - The right to form cooperative societies is a Fundamental Right **(Art. 19)**.
  - Added a new DPSP on the promotion of cooperative societies **(Art. 43B)**.
  - Added a new part IX-B entitled "Co-operative Societies" **(Art. 243-ZH to 243-ZT)**.

A Secular State:

- The term "Secular" was introduced into the Preamble of the Indian Constitution through the **42nd Constitutional Amendment Act in 1976.**
- This designation indicates that the Indian State does not endorse any specific religion as its official faith.
- The **Western** interpretation of secularism emphasizes a complete separation between religion (the church) and the state (politics).
- In contrast, the **Indian** perspective on secularism reflects a more positive approach, which entails granting equal respect to all religions and ensuring their protection without discrimination.

Universal Adult Franchise:

- The concept of universal adult franchise is enshrined in **Article 326** of the Indian Constitution
- It establishes the right to vote in elections to the Lok Sabha and state legislative assemblies.
- It ensures that every citizen who is **18 years** of age or older can vote without any discrimination based on caste, race, religion, gender, literacy, or economic status.
- The voting age was reduced to 18 years from 21 years in 1989 through the **61st Constitutional Amendment Act, 1988.**

Single Citizenship:

- The Indian Constitution is federal and envisages a dual polity (centre and state) but it provides for only a single citizenship, that is Indian citizenship.
- In **India**, all citizens irrespective of the state in which they are born or reside enjoy the **same political and civil rights** of citizenship all over the country, and no discrimination is made between them.
- In contrast to the **USA** where each person is not only a citizen of the USA, but also a citizen of the particular state to which he belongs.

Independent Bodies:

The Indian Constitution establishes independent bodies as key pillars safeguarding the democratic system of government in India:

- **Election Commission** to ensure free and fair elections
- **Comptroller and Auditor-General of India** to audit the accounts of the central and state governments.
- **Union Public Service Commission** to conduct examinations for recruitment to all-India services and higher Central services and to advise the President on disciplinary matters.
- **State Public Service Commission** in every state to conduct examinations for recruitment to state services and to advise the governor on disciplinary matters.

Emergency Provisions:

- The Indian Constitution includes detailed provisions for emergencies to empower the President to effectively address any extraordinary circumstances.
- The rationale for these provisions is to protect the sovereignty, unity, integrity, and security of the nation, as well as to uphold the democratic framework and the Constitution itself.

- The Constitution outlines three categories of emergencies:
  - **National** Emergency: This can be declared due to war, external aggression, or armed rebellion, as per **Article 352.**
  - **State** Emergency (also known as President's Rule): This applies in cases of constitutional machinery failure in states, based on **Article 356**, or if states fail to comply with central directives, as noted in **Article 365**.
  - **Financial** Emergency: This can be proclaimed when there is a threat to India's financial stability or credit, according to **Article 360**.
- These provisions are designed to ensure that the Constitution and the governance of India can withstand critical challenges.

Three-tier Government:

- Initially, the Indian Constitution established a dual polity with specific provisions outlining the organization and powers of both the Centre and the states.

- However, the enactment of the **73rd and 74th Constitutional Amendment Acts in 1992** introduced a unique third tier of government at the local level, which is not present in any other constitution globally.
  - The **73rd Amendment Act** granted constitutional recognition to panchayats (rural local governments) by adding a **new Part IX and a new Schedule 11** to the Constitution.
  - The **74th Amendment Act** provided constitutional recognition to municipalities (urban local governments) by incorporating a **new Part IX-A and a new Schedule 12**. This development marked a significant enhancement in the federal structure of India, empowering local governance and ensuring that the voices of citizens at the grassroots level are heard and represented.

Synthesis of Parliamentary Sovereignty and Judicial Supremacy:

- The doctrine of **parliamentary sovereignty** is primarily linked to the **British** Parliament, whereas the concept of **judicial supremacy** is associated with the **American** Supreme Court.
- In contrast to the American Constitution, which ensures 'due process of law,' the Indian Constitution includes a provision for '**procedure established by law' under Article 21.**
- As a result, the framers of the Indian Constitution aimed to strike a balance between the British principle of parliamentary sovereignty and the American principle of judicial supremacy.
- The Supreme Court has the authority to declare parliamentary laws unconstitutional through its power of judicial review.
- Conversely, the Parliament possesses the ability to amend a significant portion of the Constitution via its constituent power.
- This dual framework underscores the interplay between legislative authority and judicial oversight in India's constitutional architecture.

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Criticism and counter criticism of the Indian Constitution

Criticism	Counter to Criticism
Perceived as Un-Gandhian	While it may not directly reflect Gandhian principles, the Constitution aligns with many of Gandhi's core values, emphasizing social justice and equality.
Described as a Paradise for Lawyers	The legal terminology is essential for ensuring clarity and effective enforceability of laws, which is necessary in a diverse and complex society.
Alleged Elephantine Size	The Constitution's comprehensive nature is vital for addressing India's vast diversity and complexity, providing a framework for various cultural and social contexts.
Claims of Being Un-Indian or Anti-Indian	It embodies Indian ideals and aspirations, reflecting the nation's ethos, even while incorporating some foreign influences.
Comparison to the Government of India Act, 1935	While it borrows certain provisions, the Constitution introduces significant changes and innovations tailored to Indian circumstances.
Labeled as a Borrowed Constitution	The framers adapted and modified borrowed features to suit Indian conditions, effectively addressing the shortcomings of the original sources.

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